
Case	Title / Nature of Case
02:00 PM	
22-CIV-00930	701 EL CAMINO ASSOCIATES, LLC VS. E.A. DAVIDOVITS & CO., INC.
LINE 1	
701 EL CAMINO ASSOCIATES, LLC	JOHN HAUSHALTER
E.A. DAVIDOVITZ & CO., INC.	ALEXANDER R. MOORE

DEFENDANT/CROSS COMPLAINANT: E.A. DAVIDOVITS & CO. INC.'S MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES, SET ONE

TENTATIVE RULING:

Plaintiff 701 El Camino Associates and Defendant E.A. Davidovits & Co. are ORDERED to APPEAR regardless of whether they are contesting the tentative to update the Court on the status of the interrogatories at issue. Further counsel for Defendant E.A. Davidovits & Co. is ORDERED to contact counsel for Plaintiff 701 El Camino Associates on September 12, 2026 by email and telephone to alert Plaintiff's counsel about the hearing and the need to appear. Nevertheless Defendant E.A. Davidovitz & Co.'s Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One, is DENIED WITHOUT PREJUDICE.

This nine month old motion in a nearly five year old construction-related case was filed because Plaintiff apparently didn't respond to form interrogatories issued over a year ago.

The date of the hearing was changed upon the filing of the motion by the clerk's office from January 26, 2026 to September 14, 2026. (See Dec. 19, 2025 Notice of Motion & Motion, p. 1.) No amended Notice of Motion or proof of service of notice of the changed hearing date has been filed, no Opposition has been filed and there is no indication that Plaintiff 701 El Camino Associates, LLC was validly served proper notice of the hearing.

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied without prejudice to a renewed motion properly noticed and served.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for E.A. Davidovitz & Co. shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-00494
LINE 2

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC.,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET THREE, AND TO IMPOSE
MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Special Interrogatories, Set Three,
and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to interrogatories within thirty days of service. (Code of Civ. Proc.,
§ 2030.260, subd. (a).) A party who fails to serve a timely response to an interrogatory waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2030.290, subds. (a)–(b).)

Plaintiff Northern California Collection Service, Inc. (“NCCS”) served Defendant Ampex Engineering
and Construction, Inc. (“Ampex”) with a third set of special interrogatories on October 14, 2025. (Dec.
16, 2025 Compendium of Exhibits, p. 119.) As of December 16, 2025, no responses to the set of
interrogatories had been served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses
and impose monetary sanctions for the failure to respond.

Due to a mistaken assumption that NCCS had tacitly agreed to stay discovery while the parties mediated
the case, Ampex’s counsel did not calendar the deadline to respond—resulting in Ampex’s failure to
serve timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving
notice of the motion, Ampex served verified responses without objections to each interrogatory in the set
on January 9, 2026. (*Id.*, at ¶ 19; Aug. 25, 2026 Compendium of Exhibits, pp. 36–53.)

Despite having received the responses and failing to raise any issue with the responses’ substance, NCCS
nonetheless persists in seeking an order compelling Ampex’s responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §
